



POLICE DEPARTMENT

May 13, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Matthew Davis
Tax Registry No. 914746
Police Service Area 4
Disciplinary Case No. 2014-12073

The above-named member of the Department appeared before me on October 30, 2014 and April 2, 2015, charged with the following:

1. Said Police Officer Matthew Davis, while assigned to PSA #4, on or about December 8, 2013, at about 1335 hours, while assigned to a fixed post inside a Department vehicle, wrongfully failed to remain alert and to observe conditions at said post, as required.

P.G. 203-05, Page 1, Paragraph 1 – PERFORMANCE ON DUTY – GENERAL
GENERAL REGULATIONS

P.G. 202-21, Page 1, Paragraph 5 – POLICE OFFICER
DUTIES AND RESPONSIBILITIES

The Department was represented by Joshua Kleiman, Esq. Respondent was represented by John Tynan, Esq.

Respondent through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty.

FINDINGS AND ANALYSIS

The following facts are undisputed. On December 8, 2013, Respondent was assigned to a fixed patrol post at the intersection of West 26 Street and West 27 Street in Manhattan. This assignment was in response to a recent shooting in that area to provide increased police visibility and crime deterrence. Respondent was originally assigned to conduct surveillance in a TerraHawk¹ vehicle, but it was inoperable at the time. Because of this, Respondent was told to remain in the marked Department van he had driven to the post. Respondent originally parked the Department van in the street, but was told by Sergeant Carlos Roberts to move it onto the sidewalk next to the TerraHawk. Respondent then parked the Department van parallel to the TerraHawk on the sidewalk facing a brick wall.

Respondent was visited twice by Sergeant Roberts and once by Sergeant John DiGianni during his tour. When DiGianni arrived to inspect Respondent's post, he approached the driver's side window of the Department van and Respondent did not notice him. DiGianni then walked to the front of the van, looked in through the windshield and Respondent still did not notice his presence. DiGianni walked back to the driver's side of the van and tapped on the window with his keys, startling Respondent. After signing Respondent's memo book, DiGianni directed Respondent to turn the van around so that it was facing the street and informed Respondent that he was issuing him a Command Discipline for failing to remain alert while at his post.

The sole issue in this case is whether Respondent failed to remain alert and observe conditions while in a Department vehicle and assigned to a fixed post on

¹ While the acronym "THV" stands for Temporary Headquarters Vehicle, it was used throughout these proceedings to refer to the TerraHawk vehicle Respondent was assigned to on December 8, 2013.

December 8, 2013. At trial, Respondent denied the allegation and claimed that he was not inattentive at any point during his tour of duty.

Sergeant Roberts testified that, as patrol supervisor that day, he was responsible for assigning Respondent to his post. Roberts assigned Respondent to that post to "keep a watchful eye." Roberts could not remember ever directing Respondent how to park his car and could not think of any reason he would direct an officer to park his car facing a brick wall.

Sergeant DiGianni testified that he was one of the supervisors responsible for performing patrol monitoring that day. DiGianni responded to the intersection of West 26 Street and West 27 Street to inspect Respondent's post. As he approached, he noticed Respondent "had his head down and his eyes closed." DiGianni testified that only after tapping on the window of the van with his keys did Respondent lift his head, open his eyes, and acknowledge the sergeant's presence.

Respondent testified that at no point did he close his eyes or go to sleep during his tour of duty that day. Instead, Respondent sat in the Department van listening to the radio and sending personal text messages on his cell phone, which was in his lap. Respondent acknowledged he was startled by DiGianni because he did not see him coming as he approached the van. Respondent also admitted that he was looking down at his cell phone when the sergeant arrived. Respondent maintained he was looking on his phone for the number to call Task Force to ask when they would be coming to put gas in the TerraHawk.

The *Patrol Guide* requires officers to "[b]e aware of, and inspect, post or sector for conditions requiring police attention." P.G. 202-21, Page 1, Paragraph 5. As a police

officer assigned to a fixed post, Respondent was responsible for keeping “a watchful eye.” According to Respondent’s own testimony, he was parked facing a brick wall for about four hours. DiGianni testified that he first approached the driver’s side window of the van, then moved to the windshield, and finally back to the driver’s side window before tapping on it with his keys. Respondent admitted that he was startled by DiGianni because he never saw DiGianni coming. Respondent also admitted that, while he was assigned to this post, he was using his personal cell phone for non-Department purposes.

That Respondent did not notice the sergeant until he tapped on the window demonstrates that Respondent was inattentive and not performing his duties as they were assigned to him that day. Whether Respondent was sleeping as alleged by DiGianni, or looking down at his cell phone as Respondent claimed, Respondent was not paying attention or observing conditions at his post.

Accordingly, Respondent is found Guilty.

PENALTY

In order to determine an appropriate penalty, Respondent’s service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on January 30, 1995. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has been found Guilty of failing to remain alert while assigned to a fixed post in a Department vehicle. The Department Advocate recommended a penalty of 10 vacation days. In *Case No. 3365/10* (January 10, 2012), a police officer with no

disciplinary history forfeited fifteen vacation days for failing to remain alert, after being observed sleeping in her assigned RMP. In *Case No. 9831/13* (January 15, 2014), a twenty-year detective with prior disciplinary history forfeited ten vacation days for wrongfully being asleep while on-duty and failing to remain alert. In *Case No. 7130/12* (November 10, 2014), a police officer with prior disciplinary history forfeited ten vacation days for failing to remain attentive while on patrol and using his personal cell phone several times for non-Department purposes while on-duty.

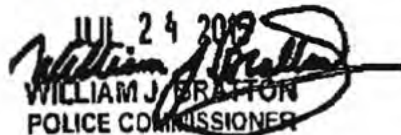
Thus, the penalty sought by the Advocate is appropriate and it is recommended that Respondent forfeit a penalty of ten vacation days.

Respectfully Submitted,

Handwritten signature of Amy J. Porter in cursive script, followed by the initials "RM".

Amy J. Porter
Assistant Deputy Commissioner—Trials

APPROVED

JUL 24 2019

WILLIAM J. BRATTON
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER MATTHEW DAVIS
TAX REGISTRY NO. 914746
DISCIPLINARY CASE NO. 12073/2014

Respondent was appointed to the Department on January 30, 1995. He received an overall rating of 2.5 on his 2013 and 2014 annual performance evaluations and 3.5 on his 2012 annual evaluation. He was designated Chronic A on one occasion. [REDACTED]
[REDACTED]

In 2011 Respondent was [REDACTED]
[REDACTED] found Not Guilty. He was credited with the pre-trial suspension days he served in that case. In 2014, he was placed on Level 1 Performance Monitoring for having two below standard evaluations.

For your consideration.

Amy Porter RM

Amy J. Porter
Assistant Deputy Commissioner – Trials